

vendor to have a lien upon the property for the £400, [*145] as for unpaid purchase * money (a). However, in a similar case of absolute sale upon the face of the deed, but where the grantee afterwards admitted himself in writing to be a trustee, Lord Kenyon held that, as the written evidence established facts inconsistent with the deed, further evidence by parol was admissible to prove the truth of the transaction (b).

7. **Mistake or fraud.** — Of course the Court will not permit the grantee to retain the beneficial interest if there was any mistake on the part of the *grantor* (c), or any *mala fides* on the part of the *grantee* (d). But if the *grantor* himself intended a *fraud* upon the law, the assurance, if the defendant set up the defence, will remain absolute against the grantor (e); but if the defendant admit the trust, it seems the Court will relieve (f).

8. **Addition to a trust fund.** — If a person invest a sum in the names of the trustees of his marriage settlement, no trust will result, the presumption being that he meant it to be held upon the trusts of the settlement (g); and Sir J. Bacon once observed generally, that in marriage settlements the resulting trust was not in favour of the settlor (h), meaning it is conceived that the presumption of making provision for the persons marrying and their issue, was strong enough in certain cases to prevail against the general rule. [But

467; *Grey v. Grey*, 2 Swans. 598, *per* Lord Nottingham; *Elliot v. Elliot*, 2 Ch. Ca. 232, *per eundem*; and see *Hayes v. Kingdome*, 1 Vern. 33; *Baylis v. Newton*, 2 Vern. 28; *Cook v. Hutchinson*, 1 Keen, 42.

(a) *Leman v. Whitley*, 4 Russ. 423.

(b) *Cripps v. Jee*, 4 B. C. C. 472.

(c) *Birch v. Blagrove*, Amb. 264; *Anon.*, cited *Woodman v. Morrell*, 2 Freem. 33; *Childers v. Childers*, 1 De G. & Jon. 482; *Manning v. Gill*, 13 L. R. Eq. 485; *Davies v. Otty* (No. 2), 35 Beav. 208; and see *Attorney-General v. Poulton*, 8 Sim. 472.

(d) *Lloyd v. Spillet*, 2 Atk. 150; 463.]

S. C. Barn. 388, *per* Lord Hardwicke; *Hutchins v. Lee*, 1 Atk. 448, *per eundem*; *Young v. Peachy*, 2 Atk. 254; *Wilkinson v. Brayfield*, cited ib. 257; *S. C.* reported 2 Vern. 307; *Davies v. Otty* (No. 2), 35 Beav. 208.

(e) *Cottington v. Fletcher*, 2 Atk. 156, *per* Lord Hardwicke; and see *Chaplin v. Chaplin*, 3 P. W. 233; *Muckleston v. Brown*, 6 Ves. 68.

(f) See *Cottington v. Fletcher*, *Muckleston v. Brown*, *ubi supra*.

(g) *Re Curteis's Trust*, 14 L. R. Eq. 217.

(h) *Rainy v. Ellis*, W. N. 1872, p. 104; [and see *S. C.* 26 L. T. N. S. 602, and on appeal 27 L. T. N. S.